

Refined product export restrictions likely if prices remain elevated

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Democrats look vulnerable in New Hampshire

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Clarity Act will likely have to wait until 2027 for another shot

Refined product export restrictions likely if prices remain elevated. Senate Majority Leader John Thune (R-SD) said yesterday he would be open to a diesel fuel export ban, fueling speculation that the administration will take action as prices rise past \$6.30 a gallon. We see such a ban as likely only if prices continue rising and remain elevated until late October.

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Export restrictions were previously considered in the early summer, as diesel inventories declined and prices rose. Short-term relief driven by the June Memorandum of Understanding between the U.S. and Iran brought prices down enough for President Donald Trump to avoid taking that step.

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This time Trump faces many of the same pressures, exacerbated by a drop in Russian production and an even smaller likelihood of an agreement with Iran that would grant the global oil market some reprieve. Diesel stocks have continued to decrease while exports are at highs (see charts below), and he will be under pressure to take action before higher diesel prices raise costs throughout the U.S. economy.

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Any export restriction would be temporary and targeted, likely involving quotas on specific refined products—diesel, gasoline, and jet fuel are possible—that allows some exports to continue while volumes are redirected to the West and East coasts and into storage. Jones Act waivers could also be used to ease product shipment to demand centers.

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For more on what potential restrictions would look like, please see Refined product export restrictions unlikely before late summer , 29 May 2026.

Russia sanctions bill likely to pass Wednesday after procedural vote. The House of Representatives is set to vote on the Russia sanctions bill today, after advancing through a procedural vote on the House Rules Committee. President Trump is expected to sign the bill into law after passage.

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The House Rules Committee vote affirms our longtime view that the bill is likely to pass (60%). The main structural hurdle for the bill to overcome was finding a path to a floor vote before the lame duck period (see Abbreviated congressional schedule is new hurdle for Graham sanctions bill, 2 September 2026). Political opposition among Democrats remains, but Ukrainian President Volodymyr Zelensky has engaged Democrats consistently in support of the bill.

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The bill will grant President Trump authority to impose tariffs up to 500% on Russia itself and up to 100% on the top importers of Russian oil and gas, as well as the top supporters of Russian sanctions evasion. These authorities are the main point of Democratic opposition, for fear they are too broad and could be used on US allies. However, the bill also gives President Trump an easy exit-ramp: Trump may waive any sanction or tariff if it is deemed to be in the national interest, and waivers do not require renewal as under past sanctions bills.

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The bill does not give President Trump the authority to remove existing sanctions on his own, nor does it allow him to ignore the named entities – Russian officials and companies – Congress targeted in the bill on a bipartisan basis.

Democrats look vulnerable in New Hampshire. The New Hampshire Senate race appears to be trending against Democrats—Cook Political Report moved it into a “toss-up” category, while a co/efficient poll showed Rep. Chris Pappas (D-NH) tied with former senator John Sununu.

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In our last update on the New Hampshire race, we noted that the race looked closer than most had expected, but that we’d need to see more polling data to move it away from a “likely Democratic” tier given the state’s Democratic partisan lean (see Republicans’ outlook is remarkably stable , 4 September 2026). The co/efficient poll is a point in that direction, suggesting that the race is indeed quite competitive, even if—due to the state’s fundamentals—we don’t see it as quite a toss-up yet, since Pappas still leads by between four and five points in the polling averages.

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But Democrats will probably need to start playing defense in the Granite State. They’ve been outspent by the Sununu campaign--\$27 million to \$15.9 million as of last week—and Republicans have significantly more in future ad reservations. Even if Republicans end up losing the race, they’ll likely succeed in forcing national Democrats to divert funding away from “reach” states like Alaska and Iowa, and toward shoring up their own seats.

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The current pattern of Democratic polling in key Senate races is somewhat surprising: Democrats are running strong in Republican-leaning states like Ohio and Texas, but look weaker than expected in Michigan and New Hampshire, states whose seats they currently hold. This isn’t an implausible story; if

Democrat gains this year are driven largely by massive swings among young and Hispanic voters, as recent polling has indicated (see [The GOP's 2024 coalition is collapsing](#) , 15 September 2026), then Democratic gains should be smaller in older, whiter states like New Hampshire and Michigan, making Republicans still be competitive there with strong candidates of their own (like Sununu). Given the outsize impact of potential Democratic losses in any of their own states, this is reason for caution on increasingly bullish perceptions of Democrats' chances of winning the Senate.

Clarity Act will likely have to wait until 2027 for another shot. The Senate failed to advance the Clarity Act, a crypto market-structure bill, in a cloture vote yesterday that fell mostly on partisan lines.

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This was the last real chance for the bill to move before the midterms, meaning it is likely dead this year, though with an outside shot at coming up in the lame duck session.

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We had seen passage of legislation, a key priority for the crypto industry, as a moderate likelihood (60% odds, see [United States: Congress likely to pass crypto legislation before midterms](#) , 16 March 2026), but cited the packed legislative calendar and continuing ethics concerns from Democrats as serious challenges to a bipartisan deal. The latter factor appears to have been decisive; we overindexed on the importance of the clear bipartisan interest in getting a deal done this year.

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This probably isn't the last shot at crypto legislation in the Trump administration, and we would expect the bill's advocates in the Senate, as well as the crypto industry, to make another push in 2027. But probable Democratic control of at least one chamber of Congress—coupled with the likelihood that President Trump's crypto dealings will be central to Democratic oversight efforts—will mean that the outlook then will likely be no brighter for the bill than it was this year.

Quote of the Day

"You remember what AOC said — was it climate change? What was her stupid thing? She said, 'We're all going to be dead in 10 years'? What the president is saying is you're not all going to be dead in 10 years." - Speaker of the House Mike Johnson (R-LA) speaking to Politico about AI fears; despite bipartisan, grassroots concern about the technology's dangers, GOP leadership has maintained that the focus should be on ensuring the U.S. does not fall behind China in the AI race, and will likely continue to dismiss so-called "x-risk" as a pet concern of left-leaning AI thinkers.

On the Radar

17 September: Last day House is in session before midterms

18-28 September: High-Level Week at UN General Assembly

24 September: Trump-Xi summit

2 October: Last day Senate is in session before midterms

3 November: National midterm elections

10 November: US-China tariff truce expires

18-19 November: APEC leaders meeting in China

11 December: Government funding runs out

14-15 December: G20 summit in Florida

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